

Privacy policy

In this privacy policy, we, Rebex AG (hereinafter referred to as we or us), describe how we collect and process personal data. This Privacy Policy is not an exhaustive description; other privacy statements may address specific issues. For the purposes of this Privacy Policy, personal data is understood to mean all information relating to an identified or identifiable person.

1. Responsible body and contact

Rebex AG is responsible for the data processing described here, unless otherwise stated in individual cases. Requests for data protection can be sent to us by letter or e-mail, accompanied by a copy of the user's ID or passport:

Rebex AG
Herr Alfons G. Florian
Zentralstrasse 19
Post office box
CH-8953 Dietikon 1

rebex@rebex.ch

2. Collection and processing of personal data

We process personal data in particular in the following categories of processing.

- Customer data of customers for whom we provide or have provided services.
- Personal data that we have received indirectly from our customers in the course of providing services.
- When visiting our website
- When using our newsletter
- When attending one of our events.
- When we communicate or a visit takes place.
- In the event of any other contractual relationship, e.g. as a supplier, service provider or consultant.
- For applications
- If we are required to do so for legal or regulatory reasons.
- When we exercise our due diligence obligations or other legitimate interests, e.g. to avoid conflicts of interest, prevent money laundering or other risks, ensure data accuracy, check creditworthiness, ensure security or enforce our rights.

More detailed information can be found in the description of the respective categories of edits in No. 5

3. Categories of personal data

The personal data we process depends on your relationship with us and the purpose for which we process it. In addition to your contact details, we also process other information about you or about people who have a relationship with you. This information may also be personal data that is particularly sensitive under certain circumstances.

We collect the following categories of personal data, depending on the purpose for which we process it:

- Contact information (e.g. surname, first name, address, telephone number, e-mail)
- Customer information (e.g. date of birth, nationality, marital status, occupation, title, job title, denomination, gender, passport / ID number, AHV number)

- Risk assessment data (e.g. creditworthiness information, commercial register data)
- Financial information (e.g. bank details)
- Mandate data, depending on the assignment (e.g. tax information, articles of association, minutes, projects, contracts, employee data (e.g. salary, social insurance), accounting data, beneficial owners, ownership)
- Website data (e.g. IP address, device information (UDI), information about the browser, website usage (analysis and use of plugins, etc.)
- Application data (e.g. CV, job references)
- Marketing information (e.g. newsletter registration)
- Security and network data (e.g. visitor lists, access controls, network and mail scanners, telephone call logs)
- Criminal record extracts

As far as this is permitted, we also take certain data from publicly accessible sources (e.g. debt collection registers, land registers, commercial registers, press, Internet) or receive such data from our clients and their employees, from authorities, (arbitration) courts and other third parties. In addition to the data about you that you provide to us directly, the categories of personal data that we receive about you from third parties include, in particular, information from public registers, information we learn in connection with administrative and judicial proceedings, information related to your professional functions and activities (for example, so that we can conclude and conduct business with your employer with your help), Information about you in correspondence and meetings with third parties, credit checks, information about you that people from your environment (family, consultants, legal representatives, etc.) give us so that we can conclude or process contracts with you or with the involvement of you (e.g. references, your address for deliveries, powers of attorney) Information on compliance with legal requirements such as anti-money laundering and export restrictions, Information from banks, insurance companies, sales and other contractual partners of ours regarding the use or provision of services by you (e.g. payments made, purchases made), information from the media and the Internet about you (as far as this is indicated in the specific case, e.g. in the context of an application, etc.), your addresses and, if applicable, interests and other socio-demographic data (for marketing), data in connection with the use of the website (e.g. IP address, MAC address of your smartphone or computer, information about your device and settings, cookies, date and time of visit, pages and content accessed, functions used, referring website, location information).

4. Purposes of data processing and legal basis

4.1. Provision of services

We primarily process the personal data that we receive from our clients and other persons involved in our client relationships with our customers and other contractual relationships with business partners.

The personal data of our customers is in particular the following information:

- Contact information (e.g. surname, first name, address, telephone number, e-mail, other contact information)
- Personal information (e.g. date of birth, nationality, marital status, occupation, title, job title, passport / ID number, AHV number, family circumstances, etc.)
- Risk assessment data (e.g. creditworthiness information, commercial register data, sanctions lists, specialised databases, data from the Internet)
- Financial information (e.g. data on bank details, investments or shareholdings)
- Mandate data, depending on the order, e.g. tax information, articles of association, protocols, employee data (e.g. salary, social insurance), accounting data, etc.
- Particularly sensitive personal data: This personal data may also include personal data that is particularly sensitive to protection, such as Data on health, religious beliefs or social welfare measures, especially when we provide payroll processing or accounting services.

We process this personal data for the purposes described on the basis of the following legal bases:

- Conclusion or execution of a contract with the data subject or for the benefit of the data subject, including the initiation of the contract and any enforcement (e.g. advice, trust)
- Comply with a legal obligation (e.g., if we are performing our duties as an auditor or are required to disclose information)
- Safeguarding legitimate interests, (e.g. for administrative purposes, to improve our quality, ensure safety, operate risk management, enforce our rights, defend ourselves against claims or to check possible conflicts of interest)
- Consent (e.g. to send you marketing information).

4.2. Indirect data processing from the provision of services

When we provide services to our customers, we may also process personal data that we have not collected directly from the data subjects or personal data of third parties. These third parties are usually employees, contact persons, family members or persons who are in a relationship with the customers or the data subjects for other reasons. We need this personal data to fulfill contracts with our customers. We receive this personal data from our customers or from third parties engaged by our customers. Third parties whose information we process for this purpose are informed by our customers that we are processing their data. Our customers can refer to this privacy policy for this.

The personal data of the persons who have a relationship with our customers is in particular the following information:

- Contact information (e.g. surname, first name, address, telephone number, e-mail, other contact information, marketing data)
- Personal information (e.g. date of birth, nationality, marital status, occupation, title, job title, passport / ID number, AHV number, family circumstances, etc.)
- Financial information (e.g. data on bank details, investments or shareholdings)
- Mandate data, depending on the assignment, e.g. tax information, articles of association, protocols, employee data (e.g. salary, social insurance), accounting data
- Particularly sensitive personal data: This personal data may also include personal data that is particularly sensitive to protection, such as Data on health, religious beliefs or social welfare measures, especially when we provide payroll processing or accounting services.

We process this personal data for the purposes described on the basis of the following legal bases:

- Entering into or performing a contract with or for the benefit of the data subject (e.g. when we carry out our contractual obligations)
- To comply with a legal obligation (e.g. if we are carrying out our duties as an auditor or are required to disclose information)
- Safeguarding legitimate interests, in particular our interest in providing our customers with the best possible service.

4.3. Use of our website

In order to use our website, no personal data must be disclosed. However, the server collects a number of user information with each call, which is temporarily stored in the server's log files.

When using this general information, there is no assignment to a specific person. The collection of this information or data is technically necessary to display our website and to ensure its stability and security. This information is also collected in order to improve the website and analyse its use.

In particular, this includes the following information:

- Contact information (e.g. surname, first name, address, telephone number, e-mail)
- Other information you provide to us via the website
- Technical information automatically transmitted to us or our service providers, information about user behaviour or the settings of the website (e.g. IP address, UDI, device type, browser, number of clicks on the page, opening of the newsletter, click on links, etc.

We process this personal data for the purposes described on the basis of the following legal bases:

- Safeguarding legitimate interests, (e.g. for administrative purposes to improve our quality, analyse data or promote our services)
- Consent (e.g. to the use of cookies or the newsletter).

4.4. Newsletter use

If you subscribe to our newsletter, we will use your e-mail address and other contact details to send you the newsletter. You can subscribe to our newsletter with your consent. Mandatory information for sending the newsletter is your full name and your e-mail address, which we store after your registration. The legal basis for the processing of your data in connection with our newsletter is your consent to the sending of the newsletter. You can revoke this at any time and unsubscribe from the newsletter.

4.5. Participation in events

If you participate in an event organized by us, we collect personal data in order to organize and carry out the event and, if necessary, to send you additional information afterwards. We also use your information to alert you to other events. You may be photographed or filmed by us at these events and we may publish this image material internally or externally.

In particular, this includes the following information:

- Contact information (e.g. surname, first name, address, telephone number, e-mail)
- Personal information (e.g., occupation, function, title, employer company, eating habits)
- Images or videos
- Payment information (e.g. bank details).

We process this personal data for the purposes described on the basis of the following legal bases:

- Fulfilment of a contractual obligation with the data subject or for the benefit of the data subject, including the initiation of a contract and any enforcement (enabling participation in the event)
- Safeguarding legitimate interests (e.g. holding events, disseminating information about our event, providing services, efficient organisation)
- Consent (e.g., to send you marketing information or create visuals).

4.6. Direct communication and visits

If you contact us (e.g. by phone, e-mail or chat) or if we contact you, we will process the personal data necessary for this purpose. We also process this personal data when you visit us. In this case, you may have to leave your contact details before your visit or at the reception. We keep these for a period of time to protect our infrastructure and information.

We use the "Zoom" or "Microsoft Teams" service to conduct telephone conferences, online meetings, video conferences and/or webinars ("Online Meetings").

In particular, we process the following information:

- Contact information (e.g. surname, first name, address, telephone number, e-mail)
- Marginal data on communication (e.g. IP address, duration of communication, communication channel)
- Recordings of conversations, e.g. during video conferences
- Other information that the User uploads, provides or creates during the use of the video conferencing service, as well as metadata used for the maintenance of the service provided Additional information about the processing of personal data by "Zoom" or Microsoft Teams can be found in their privacy policies.
- Personal information (e.g., occupation, function, title, employer company)
- Time and reason for the visit.

We process this personal data for the purposes described on the basis of the following legal bases:

- Fulfilment of a contractual obligation with the data subject or for the benefit of the data subject, including the initiation of a contract and any enforcement (provision of a service)
- Safeguarding legitimate interests (e.g. security, traceability as well as handling and administration of customer relationships).

4.7. Candidacies

You can submit your application for a job with us by post or via the email address provided on our website. The application documents and all personal data disclosed to us will be treated strictly confidentially, will not be disclosed to any third parties and will only be processed for the purpose of processing your application for employment with us. Without your consent to the contrary, your application dossier will either be returned to you after the application process has been completed or deleted/destroyed, unless it is subject to a statutory retention obligation. The legal basis for processing your data is your consent, the performance of the contract with you and our legitimate interests.

In particular, we process the following information:

- Contact information (e.g. surname, first name, address, telephone number, e-mail)
- Personal information (e.g., occupation, function, title, employer company)
- Application documents (e.g. letter of motivation, certificates, diplomas, curriculum vitae)
- Evaluation information (e.g. assessment by personnel consultants, reference information, assessments)

We process this personal data for the purposes described on the basis of the following legal bases:

- Safeguarding legitimate interests (e.g. hiring new employees)
- Consent.

4.8. Suppliers, service providers, other contractual partners

If we enter into a contract with you for you to provide a service to us, we will process personal data of you or your employees. We need this in order to communicate with you and to make use of your services. We may also process this personal data in order to check whether there could be a conflict of interest in connection with our work as an auditor and to ensure that we do not take any unwanted risks with the cooperation, e.g. with regard to money laundering or sanctions.

In particular, we process the following information:

- Contact information (e.g. surname, first name, address, telephone number, e-mail).
- Personal information (e.g., occupation, function, title, employer company).
- Financial information (e.g., bank account information).

We process this personal data for the purposes described on the basis of the following legal bases:

- Conclusion or execution of a contract with the data subject or for the benefit of the data subject, including the initiation of the contract and any enforcement
- Safeguarding legitimate interests (e.g. avoidance of conflicts of interest, protection of the company, enforcement of legal claims).

5. Tracking-Technological

We use cookies on our website. These are small files that are automatically created by your browser and stored on your device (laptop, tablet, smartphone, etc.) when you visit our site.

The cookie stores information that results in connection with the specific device used. However, this does not mean that we will immediately become aware of your identity. On the one hand, the use of cookies serves to make the use of our offer more pleasant for you. For example, we use so-called session cookies to recognise that you have already visited individual pages of our website. These are automatically deleted after leaving our site.

In addition, we also use temporary cookies to optimize user-friendliness, which are stored on your device for a certain set period of time. If you visit our site again to use our services, it will automatically recognize that you have already been with us and which entries and settings you have made so that you do not have to enter them again. On the other hand, we use cookies to statistically record the use of our website and to evaluate it for the purpose of optimising our offer for you. These cookies allow us to automatically recognise that you have already been to us when you visit our site again. These cookies are automatically deleted after a defined period of time.

The data processed by cookies is necessary for the purposes mentioned. Most browsers automatically accept cookies. However, you can configure your browser so that no cookies are stored on your computer or that a notice always appears before a new cookie is created. However, disabling cookies completely may mean that you will not be able to use all the features of our website.

6. Web and newsletter analysis

In order to obtain information about the use of our website, to improve our Internet offer and to be able to address you with advertising on third-party websites or on social media, we use the following web analysis tools and re-targeting technologies: Google Analytics.

These tools are provided by third-party providers. As a rule, the information collected for this purpose

about the use of a website is transmitted to the third-party server through the use of cookies or similar technologies. Depending on the third-party provider, these servers are located abroad.

The data is usually transmitted by shortening the IP addresses, which prevents the identification of individual end devices. A transfer of this information by third-party providers only takes place on the basis of legal regulations or in the context of order data processing.

6.1. Google Analytics

On our websites, we use Google Analytics, the web analysis service of Google LLC, Mountain View, California, USA, responsible for Europe is Google Limited Ireland ("Google"). To deactivate Google Analytics, Google provides a browser plug-in under <https://tools.google.com/dlpage/gaoptout?hl=de>. Google Analytics uses cookies. These are small text files that make it possible to store specific information related to the user on the user's device. These enable an analysis of the use of our website by Google. The information collected by the cookie about the use of our pages (including your IP address) is usually transmitted to a Google server in the USA and stored there. We would like to point out that Google Analytics has been extended on this website by the code "gat._anonymizeIp();" in order to ensure anonymised collection of IP addresses (so-called IP masking). If anonymization is active, Google shortens IP addresses within member states of the European Union or in other contracting states of the Agreement on the European Economic Area, which is why no conclusions can be drawn about your identity. Only in exceptional cases is the full IP address transmitted to a Google server in the USA and shortened there. Google may associate your IP address with other data held by Google. For data transfers to the US, Google has committed to signing and complying with the EU Standard Contractual Clauses. .

6.2. Google Maps

On our website, we use Google Maps (API) from Google Inc. (1600 Amphitheatre Parkway, Mountain View, CA 94043, USA; responsible for Europe is Google Limited Ireland, "Google"). Google Maps is a web service for displaying interactive (country) maps in order to visually represent geographical information. By using this service, you will be shown our location and make it easier to get there. As soon as you call up those subpages in which the Google Maps map is integrated, information about your use of our website (such as e.g. your IP address) to Google servers in the USA and stored there. This is done regardless of whether Google provides a user account through which you are logged in or whether there is no user account. If you are logged in to Google, your data will be assigned directly to your account. If you do not want to be associated with your profile on Google, you must log out before activating the button. Google stores your data (even for users who are not logged in) as usage profiles and evaluates them.

For data transfers to the US, Google has committed to signing and complying with the EU Standard Contractual Clauses.

6.3. Social Media Plugins

So-called social media plugins ("plugins") from third-party providers are used on our website. The plugins are recognizable by the logo of the respective social network. Through the plugins, we offer you the opportunity to interact with the social networks and other users. We use the following plugins on our website: Facebook, LinkedIn, Xing. When you visit our website, your browser establishes a direct connection to the third-party servers. The content of the plugin (e.g. YouTube videos) is transmitted directly to your browser by the respective third-party provider and integrated into the site.

Data is passed on for the purpose of displaying content (e.g. publications on Twitter) regardless of whether you have an account with a third-party provider and are logged in there. If you are logged in to the third-party provider, the data you collect with us will also be directly assigned to your existing account with the third-party provider. If you activate the plugins, the information will also be published on the social network and displayed there to your contacts. For the purpose and scope of the data collection and the further processing and use of the data by the third-party providers, as well as their rights in this regard and setting options to protect your privacy, please refer to the data protection information of the third-party providers. The third-party provider stores the data collected about you as user profiles and uses them for the purposes of advertising, market research and/or needs-based design of its website. Such an evaluation is also carried out in particular for users who are not logged in in order to display needs-based advertising and to inform other users of the social network about their activities on our website. If you want to prevent the third-party providers from associating the data collected via our website with your personal profile in the respective social network, you must log out of the corresponding social network before visiting our website. You can also completely prevent the plugins from loading with specialized add-ons for your browser, such as "Ghostery" (<https://www.ghostery.com/>) or "NoScript" (<http://noscript.net/>).

6.4. Newsletter Tracking

We use the Plato software to send our newsletters. This software can be used to send newsletters.

7. Data Sharing and Transmission

We only pass on your data to third parties if this is necessary for the provision of our service, if these third parties provide a service for us, if we are legally or officially obliged to do so, or if we have an overriding interest in passing on the personal data. We will also share personal data with third parties if you have given your consent or asked us to do so.

Not all personal data is transmitted encrypted by default. Unless explicitly agreed otherwise with the customer, accounting data, payroll administration data, payslips and statements are transmitted unencrypted. If desired, we can create a secure folder in our SharePoint and send access via e-mail.

The following categories of recipients may receive personal data from us:

- Office
- Service providers (e.g. IT service providers, hosting providers, suppliers, consultants, lawyers, insurance companies).
- Third parties in the context of our legal or contractual obligations, authorities, government institutions, courts.

We conclude contracts with service providers who process personal data on our behalf that oblige them to guarantee data protection. The majority of our service providers are located in Switzerland or in the EU / EEA. Certain personal data may also be transferred to the USA (e.g. Google Analytics data) or, in exceptional cases, to other countries worldwide. If a data transfer to other countries that do not have an adequate level of data protection is necessary, this will be done on the basis of the EU Standard Contractual Clauses (e.g. in the case of Google) or other suitable instruments).

8. Duration of retention of personal data

We process and store your personal data for as long as it is necessary for the fulfilment of our contractual and legal obligations or otherwise the purposes pursued by the processing, i.e. for example for the duration of the entire business relationship (from the initiation and settlement to the termination of a contract) as well as beyond that in accordance with the statutory retention and documentation obligations. It is possible that personal data will be retained for the time in which claims can be asserted against our company (i.e. in particular during the statutory limitation period) and if we are otherwise legally obliged to do so or if legitimate business interests require this (e.g. for evidence and documentation purposes). As soon as your personal data is no longer required for the above-mentioned purposes, it will be deleted or anonymised as a matter of principle and as far as possible. For operational data (e.g. system logs, logs), shorter retention periods of twelve months or less generally apply.

9. Data integrity

We take appropriate technical and organizational security precautions to protect your personal data from unauthorized access and misuse, such as the issuance of instructions, training, IT and network security solutions, access controls and restrictions, encryption of data carriers and transmissions, pseudonymization and controls.

10. Obligation to provide personal data

As part of our business relationship, you must provide the personal data that is necessary for the establishment and implementation of a business relationship and the fulfilment of the associated contractual obligations (as a rule, you do not have a legal obligation to provide us with data). Without this data, we will not be able to enter into or perform a contract with you (or the entity or person you represent). The website cannot be used if certain information to ensure data traffic (such as IP address) is not disclosed.

11. Your rights

You have the following rights in connection with our processing of personal data:

- Right to information about personal data stored by us, the purpose of the processing, the origin and about recipients or categories of recipients to whom personal data is passed on.
- Right to rectification if your data is incorrect or incomplete.
- Right to restrict the processing of your personal data
- Right to request the deletion of processed personal data
- Right to data portability
- Right to object to data processing or to revoke consent to the processing of personal data at any time without giving reasons.
- Right to lodge a complaint with a competent supervisory authority, where provided for by law.

In order to assert these rights, please contact the 1 address given.

Please note, however, that we reserve the right to enforce the restrictions provided for by law, for example if we are obliged to store or process certain data, have an overriding interest in doing so (insofar as we may invoke it) or need it for the assertion of claims. If you incur any costs, we will inform you in advance.



Treuhand- & Revisionsgesellschaft

12. Changes to the Privacy Policy

We expressly reserve the right to change this privacy policy at any time. Last modified: September 12, 2023

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